



CHAPTER 39.

An Act to extend the making of contributions under section one of the Housing (Financial Provisions) (Scotland) Act, 1938, as respects new housing accommodation provided by local authorities before the first day of October, nineteen hundred and forty-seven; to suspend temporarily the holding of local inquiries in respect of certain compulsory purchase orders; to provide for grants and advances to the housing association approved for the purposes of section two of the aforesaid Act; and to make provision with regard to the superannuation of the employees of the said association, and for purposes connected with the matters aforesaid. [26th October 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) As respects any new house completed after the passing of this Act and before the first day of October, nineteen hundred and forty-seven by way of housing accommodation provided by a local authority, the Housing (Financial Provisions) (Scotland) Act, 1938, (which provides for contributions out of the Exchequer and by local authorities in respect of certain housing accommodation provided by local authorities) shall, as amended by any subsequent enactment, apply as if so much of section one thereof as limits the operation of that section to such housing accommodation as is specified in subsection (5) of that section (namely, accommodation for housing persons displaced from insanitary Contributions to be made in respect of new housing accommodation provided by local authorities before specified date. 2 & 3 Geo. 6. c. 3.

houses or from clearance or improvement areas or by the carrying out of re-development plans, and accommodation required for the purpose of putting an end to overcrowding) were omitted.

25 & 26 Geo. 5. (2) In reckoning for the purposes of subsection (3) of section
c. 41. forty-seven of the Housing (Scotland) Act, 1935, as amended by subsection (2) of section four of the Housing (Financial Provisions) (Scotland) Act, 1938, the number of houses in respect of which the Secretary of State has undertaken to make a contribution under section one of the last-mentioned Act, no account shall be taken of any house to which the foregoing subsection applies.

Compulsory
purchase
orders :
temporary
suspension of
local inquiries.
20 & 21 Geo. 5.
c. 40.

2. Notwithstanding anything in the Second Schedule to the Housing (Scotland) Act, 1930, in the case of a compulsory purchase order under Part III of the Housing (Scotland) Act, 1925, submitted to the Secretary of State after the passing of this Act and before the expiration of two years from that date, where any objection is made to the order and is not withdrawn, the Secretary of State may, after considering the objection, confirm the order (with or without modification) without causing a public local inquiry to be held.

Grants to
Scottish
Special
Housing
Association.

3.—(1) With a view to increasing the provision of houses for the working classes in areas where the need for such houses is greatest, the Secretary of State may, with the consent of the Treasury, make to the Scottish Special Housing Association (being the association approved for the purposes of section two of the Housing (Financial Provisions) (Scotland) Act, 1938, and hereinafter referred to as "the Association") payments in respect of such number of houses provided by the Association in such areas as he may determine.

(2) A payment under the last foregoing subsection in respect of any house shall consist of an annual contribution for a period of forty years equivalent to the sum of the annual contributions which would have been payable in any year under sections one and five of the Housing (Financial Provisions) (Scotland) Act, 1938, as amended by any subsequent enactment, if the house had been a house provided by a local authority to which those sections applied.

(3) Where the Secretary of State is satisfied that the total net annual expenditure calculated in a manner prescribed in rules made by the Secretary of State and necessarily incurred by the Association in respect of houses provided under this section is greater than the payments in respect thereof under subsection (2) of this section, the Secretary of State may, with the approval of the Treasury, make such further contribution to the Association as he may determine.

4.—(1) For the purpose of enabling or assisting the provision of advances to the Association of houses under the last foregoing section, the Secretary of State may make advances to the Association of such amounts and repayable over such periods and on such terms as may be approved by the Treasury.

Advances to
the Scottish
Special
Housing
Association
out of moneys
borrowed by
the Treasury.

(2) The Treasury may issue to the Secretary of State out of the Consolidated Fund or the growing produce thereof such sums as are necessary to enable the Secretary of State to make advances under subsection (1) of this section.

(3) For the purpose of providing the sums to be issued under subsection (2) of this section, the Treasury may, at any time, if they think fit, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939, and any securities created and issued to raise money under this subsection shall be deemed for all purposes to have been created and issued under the National Loans Act, 1939.

2 & 3 Geo. 6.
c. 117.

(4) The Secretary of State shall pay into the Exchequer any sums received by him from the Association by way of interest on or repayment of the sums advanced by him under subsection (1) of this section.

(5) Of any sums received into the Exchequer under subsection (4) of this section, so much as represents interest on the advances shall be issued out of the Consolidated Fund and applied in payment of an equivalent amount of interest which would, but for this provision, have been paid out of the permanent annual charge for the National Debt; and so much as represents repayment of the advances shall be issued out of the Consolidated Fund and applied in redeeming or paying off debt of such description as the Treasury think fit.

5. For the purposes of any enactment relating to valuation or rating, the gross annual value of any house provided by the Association under section three of this Act shall not exceed—

Valuation of
houses
provided by
Scottish
Special
Housing
Association.

(a) the rent (exclusive of occupier's rates) which would have been fixed in pursuance of subsection (5) of section forty-seven of the Housing (Scotland) Act, 1935, if the house had been a dwelling house to which that section applied owned by the local authority and occupied by a tenant to whom no rebate from rent had been granted; or

(b) the rent (exclusive of occupier's rates) charged in respect of the dwelling house;

whichever is the greater.

Scottish
Special
Housing
Association
may adopt
Local
Government
Superannua-
tion (Scotland)
Act.
1 Edw. 8. &
1 Geo. 6. c. 69.

6. The Association may, with the sanction of the Secretary of State, adopt the provisions of Part I of the Local Government Superannuation (Scotland) Act, 1937, and if they do so, that Act shall, subject to such adaptations and modifications as the Secretary of State may prescribe, have effect, in relation to the Association, as if they were a local authority required to maintain a superannuation fund under Part I of that Act, and, in relation to any employee of the Association, as if the Association were a local authority within the meaning of that Act not being either a local authority specified in Part I of the First Schedule thereto or a local Act authority within the meaning of that Act.

Contributions
to be paid out
of Exchequer.

7. There shall be paid out of moneys provided by Parliament the sums required for the payment of contributions in pursuance of section three of this Act.

Short title.

8. This Act may be cited as the Housing (Scotland) Act, 1944, and the Housing (Scotland) Acts, 1925 to 1938, and this Act may be cited together as the Housing (Scotland) Acts, 1925 to 1944.

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